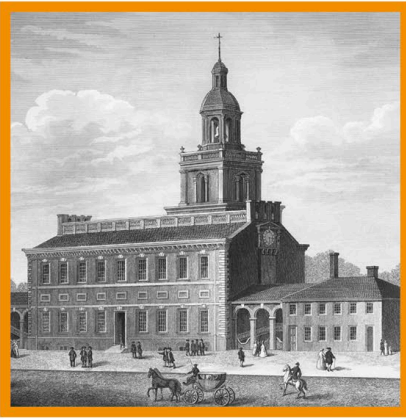




**At the Pennsylvania State House** (now Independence Hall), 39 delegates signed the Constitution in September 1787. The Declaration of Independence had been signed there 11 years earlier.

Washington was the first to sign, followed by 38 other delegates. The next step was for at least nine of the 13 states to ratify the draft.

After much haggling, the ninth state, New Hampshire, ratified in June the following year, and it was agreed that the Constitution would come into effect in March 1789.

At the end of April 1789, George Washington was elected the first US president. In February 1790, the Supreme Court sat, and the first US Congress met a month later. The government was finally fully functional. At the end of May, Rhode Island—the last of the 13 states to ratify—came on board.

### Protecting rights

Ratifying the Constitution had proved difficult. Many delegates had argued that it failed to protect political rights, such as freedom of religion and speech, and demanded that a Bill of Rights be added before they agreed to sign. In a 1788 letter to Thomas Jefferson, Madison suggested that the Constitution alone, by creating a just and proper government, should be enough

to guarantee the protection of fundamental rights. Gradually, however, Madison warmed to the idea of a Bill of Rights, partly for pragmatic reasons and partly because he could see its merits.

In 1789, as a member of the new House of Representatives, Madison proposed 19 amendments. Twelve were approved and 10 were added to the Constitution as the Bill of Rights, adopted in 1791.

Since then, remarkably few other amendments to the Bill have been added. Thousands have been proposed, but only 17 accepted, partly because of the system of checks and balances. Changes to the Constitution not only have to pass through both houses of Congress, at least three-quarters of the states must also ratify them.

### English roots

The new Constitution of the United States was a groundbreaking and historic document. The framers, however, were not trying to create something wholly revolutionary. In their determination to fashion a system that could curb the power of an overambitious government, many saw a parallel with the

### The Bill of Rights

Influenced by forerunners such as England's Magna Carta in 1215 and Bill of Rights in 1689, the US Bill of Rights is a collection of individual rights reinforced by limitations on federal and state governments. It comprises the first 10 amendments to the Constitution, enshrining rights such as freedom of speech and religion, the right to remain silent, and the right to keep and bear arms. Also included are protections for those accused of crimes, such as the right not

“  
Let our government be  
like that of the solar system.  
Let the general government  
be like the sun and the states  
the planets, repelled  
yet attracted ...  
**John Dickinson**  
Delaware representative  
(1732–1808)

balance of power achieved by English legislation to protect the rights of Parliament against the threat of royal tyranny. The US replaced monarchy with a president elected for fixed terms, but in other respects, the Constitution had a lot in common with the British system that the US had rebelled against a decade earlier. At first, it was even proposed that the president should be addressed as “Your Highness.” »

to be imprisoned without due process of law and not to be tried twice for the same offense (double jeopardy). As axioms of government, the amendments have a binding legal force. Congress cannot pass laws that conflict with them; states could initially, but now cannot legislate against most of their guarantees.

More citizens were covered by the Bill's protection when slavery was abolished in 1865, and in 1868 when, under the Fourteenth Amendment, those born or naturalized in the US became American citizens.